8706080399 VOL 0422 PAGE 2235

After recording return to:
RYAN, SWANSON & CLEVELAND
3200 Bank of California
Seattle, Washington 98164 /CKN

DECLARATION OF RESTRICTIVE COVENANT

THIS DECLARATION executed the 2nd day of June, 1987, by SPRINGFIELD ESTATES DEVELOPMENT, INC., a Delaware corporation, is based on the recitals appearing below:

RECITALS

WHEREAS, SPRINGFIELD ESTATES DEVELOPMENT, INC. is the owner in fee simple absolute of certain real property legally described on Exhibit "A" attached hereto and incorporated herein by this reference which is located in Springfield Estates Subdivision as per plat recorded under Pierce County Auditor's File No. 8011260320 ("Springfield Estates"); and

WHEREAS, Protective Covenants and Restrictions were filed on April 17, 1981 under Pierce County Recording No. 8104170168 ("Covenants") affecting said property together with other property; and

WHEREAS, members of the Springfield Action Committee believed said covenants to prohibit the installation and use of mobile homes and manufactured housing as residences either temporarily or permanently; and

WHEREAS, the Declarant and/or its' predecessors in interest believed said Covenants did not prohibit the installation or occupancy of mobile homes as residences either temporarily or permanently; and

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WHEREAS, litigation regarding the interpretation of the Covenants was commenced by the Springfield Action Committee under Pierce County Cause No. 85-2-04842-9; and

WHEREAS, on September 20, 1985 a partial summary judgment in favor of defendants, which included Declarant's predecessor in interest, was entered in Pierce County Cause No. 85-2-04842-9 holding that the above-mentioned Covenants did not prohibit the installation of mobile homes or manufactured housing at Springfield Estates; and

WHEREAS, Springfield Action Committee, brought an appeal in the Court of Appeals for the State of Washington, Division II, under No. 9372-3-II; and

WHEREAS, the Declarant, its predecessor in interest, and the Springfield Action Committee, John J. Kotalik, III, and Colleen M. Kotalik, Gilbert Arias, and Deborah Jean McDougal have agreed to a Settlement Agreement and dismissal with prejudice of the subject litigation and appeal in partial consideration of Declarant's execution and recording of this Declaration.

NOW, THEREFORE, in consideration of the Recitals and based on other valuable consideration, the receipt of which is hereby acknowledged, the Declarant does hereby declare as follows:

1. That mobile homes and manufactured homes shall be and hereby are prohibited from being occupied or installed as temporary or permanent residences upon the Lots described in Exhibit "A";

2. That the restriction on usage of the Exhibit A Lots shall be and hereby is binding on the Declarant, its' grantees, heirs, successors and assigns in perpetuity; and

3. That the covenant contained herein shall inure only to the benefit of those lot owners within the Springfield Estates, and their successors and assigns, who have agreed to and accepted the Settlement Agreement referenced in the Recitals, and any such lot owner, or successors or assigns, shall have the right to enforce this Declaration.

In witness hereof, the party signing below assents to the foregoing Declaration.

SPRINGFIELD ESTATES DEVELOPMENT, INC., a Delaware Corporation

By: _____
Its: Vice President

STATE OF Washington)
) ss.
COUNTY OF King)

On this 2nd day of June, 1987, before me, the undersigned, a Notary Public in and for the State of Washington, duly commissioned and sworn personally appeared Paul C. Chapman to me known to be the Vice President of Springfield Estates Development, Inc, the Corporation that executed the foregoing instrument and acknowledged the said instrument to be the free and voluntary act and deed of said Corporation, for the uses and purposes therein mentioned, and on oath state that he is authorized to execute the said instrument and that the seal affixed is the corporate seal of said Corporation.

WITNESS my hand and official seal hereto affixed the day and year in this certificate above written.

NOTARY PUBLIC in and for the state of Washington, residing at Bellevue
My commission expires: 11-11-90

r214h060187

EXHIBIT A

Lots 52 - 63 inclusive, 80, 85, 86, 104, 105, 110 - 114 inclusive, 116 - 130 inclusive, 132, 133, 135, 136, 138, 140 - 147 inclusive, 149, 158, 159, 160, 162, 282 - 285 inclusive, 290 - 308 inclusive, 316 - 323 inclusive, 328 - 339 inclusive, 347 - 350 inclusive, 356 - 369 inclusive, in Springfield, as per plat recorded under Auditor's File No. 8011260320, records of Pierce County.

Situate in County of Pierce, State of Washington.

p218h052787

RECORDED
87 JUN 8 P 2:38
AUDITOR PIERCE COUNTY, WASH.

EXHIBIT A